

24AVCV01165 24AVCV01165

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C09%2F08%2F2026

Source SHA-256: edd1ab948e329a3c962ea873be3a8d81c64894e4447ec4d24659cc03f3ac81a9

Case Number: 24AVCV01165 Hearing Date: September 8, 2026 Dept: A14

AYALA V. PALMALE REGIONAL MEDICAL
CENTER, et al., 24AVCV01165

Motion for Summary Judgment or, in
the alternative, Motion for Summary Adjudication ("Motion")

The Court does not have a tentative ruling on the Motion. The Court
informs the parties of the following.

Plaintiff's request to continue the hearing on the Motion is DENIED.
Written order will follow.

The Court's inclination is to SUSTAIN Plaintiff's objection to Defendant's
Exhibit C (cleaning and inspection records).

Defendant has failed to establish that the statements in Exhibit C are
admissible under the business records exception to the hearsay rule.

California Evidence Code § 1271 provides that a writing made as a record
of an act, condition, or event is not made inadmissible by the hearsay rule if:
(a) the writing was made in the regular course of a business; (b) the writing
was made at or near the time of the act, condition, or event; (c) the custodian
or other qualified witness testifies to its identity and the mode of its
preparation; and (d) the sources of information and method and time of
preparation were such as to indicate trustworthiness. (Cal. Evid. Code §
1271.) The burden of establishing all four foundational requirements falls on
the party seeking to introduce the evidence. (People v. Hovarter (2008) 44
Cal. 4th 983, 1011.)

As to Exhibit C., Defense counsel recites that his is "informed and believe that these records were prepared in the regular course of business at or near the time of the act, condition or event." (Whitehead Declaration, para. 6.) Counsel's declaration provides no further support on that score. Exhibit C includes a verification from PRMC employee Deborah Slaughter who testifies, "The matters stated in the foregoing document are not at all within my personal knowledge. The facts and contentions as stated in said document have been assembled by authorized employees, agents, and counsel for Defendant and I am informed and believe that the facts stated therein are true." (Exhibit C., at 1.) Neither Counsel nor Ms. Slaughter has provided a foundation for testifying that the statements within the documents at Exhibit C are admissible hearsay under the business records exception. If anything, they affirmatively disqualified themselves as competent witnesses by affirming their knowledge is solely through information and belief. In short, Defendant has put forward no competent testimony for the Court to determine that Exhibit C and the statements it contains are admissible under Section 1271.

The Court recognizes that Defendant very well could lay the foundation for admission of these documents at trial. Admission of business records at trial can be routine. But the Court may not look ahead to admissibility at trial in ruling on proper objections at the summary judgment. (*Sargenti v. City of Long Beach* (2026) 20 Cal.App.5th 702, 714-715.)

At the hearing on the Motion, the Court would like the parties to address whether the Court's ruling on the admissibility of Defense Exhibit C precludes the Court from granting any part of the Motion.